

Court No. - 9

Case :- WRIT - C No. - 31931 of 2014

Petitioner :- Executive Engineer Electricity Distribution Division

Respondent :- Aneeta Garg & Another

Counsel for Petitioner :- Nripendra Mishra

Hon'ble Pankaj Naqvi,J.

It is contended by Sri Nripendra Mishra, learned counsel for petitioner that in terms of Clause 4.15 (C) of U.P. Electricity Supply Code, 2005, a consumer is entitled only to a single point connection inside the premises, whereas in the present case, two electricity connections were found in the same premises. It is further contended that as theft was reported in the electricity connection of husband, both connection, i.e, of husband and that of wife (respondent no. 1) were rightly disconnected. Further submission is that findings of Permanent Lok Adalat that both electric connections are installed at different places is perverse as despite repeated notices, defect was not removed.

Issue notice. Steps by both modes, within a fortnight.

Respondents are granted a month's time to file counter affidavit. Rejoinder affidavit, if any, may be filed within a week thereafter.

List in the week commencing **28.7.2014.**

Till the next date of listing, effect and operation of impugned award dated 29.5.2014, shall remain stayed, except restoration of electricity connection no. 6110/058072 of respondent no. 1 (Aneeta Garg), which shall be restored forthwith.

Order Date :- 4.6.2014

Chandra

Court No. - 38

Case :- WRIT - C No. - 31931 of 2014

Petitioner :- Executive Engineer Electricity Distribution Division

Respondent :- Aneeta Garg & Another

Counsel for Petitioner :- Nripendra Mishra

Hon'ble Pankaj Mithal,J.

List again in the next cause list showing the name of Sri Anay Kumar Srivastava as counsel for respondent no. 1.

Stay order granted earlier shall remain in operation till then.

Order Date :- 21.8.2015

v.k.updh.

Court No. - 35

Case :- WRIT - C No. - 31931 of 2014

Petitioner :- Executive Engineer Electricity Distribution Division

Respondent :- Aneeta Garg & Another

Counsel for Petitioner :- Nripendra Mishra

Hon'ble Bharati Sapru,J.

Passed over on the illness slip of Sri A.K. Srivastava.

List in the next cause list.

Interim order, if any, is extended till the next cause list.

Order Date :- 28.8.2015

S.P.

Court No. - 38

Case :- WRIT - C No. - 31931 of 2014

Petitioner :- Executive Engineer Electricity Distribution Division

Respondent :- Aneeta Garg & Another

Counsel for Petitioner :- Nripendra Mishra

Hon'ble Pankaj Mithal,J.

The pleadings have been exchanged. The matter is to be heard finally.

Counsel for the petitioner is ill.

List in the next cause list for final disposal.

Stay order granted earlier shall remain in operation till the next date of listing.

Order Date :- 4.9.2015

v.k.updh.

Court No. - 38

Case :- WRIT - C No. - 31931 of 2014

Petitioner :- Executive Engineer Electricity Distribution Division

Respondent :- Aneeta Garg & Another

Counsel for Petitioner :- Nripendra Mishra

Hon'ble Pankaj Mithal,J.

Counsel for the respondents is not present.

List in the next cause list for final disposal.

Stay order granted earlier shall remain in operation till the next date of listing.

Order Date :- 11.9.2015

Piyush

Court No. - 38

Case :- WRIT - C No. - 31931 of 2014

Petitioner :- Executive Engineer Electricity Distribution Division

Respondent :- Aneeta Garg & Another

Counsel for Petitioner :- Nripendra Mishra

Hon'ble Pankaj Mithal,J.

List after a fortnight.

Stay order granted earlier shall remain in operation till the next date of listing.

Order Date :- 18.9.2015

Piyush

Court No. - 38

Case :- WRIT - C No. - 31931 of 2014

Petitioner :- Executive Engineer Electricity Distribution Division

Respondent :- Aneeta Garg & Another

Counsel for Petitioner :- Nripendra Mishra

Hon'ble Pankaj Mithal,J.

The pleadings are complete and the petition is to be heard finally.

List for admission/final disposal in the 1st week of January, 2016.

Stay order granted earlier shall remain in operation until further orders of this Court.

Order Date :- 26.11.2015

v.k.updh.